

SCALIA, J., dissenting

“properly fulfill his obligations as a member of the electorate in voting” was “surely the kind of a generalized grievance” that does not state an Article III case or controversy. *Id.*, at 176.

And finally, a narrower reading of “party aggrieved” is supported by the doctrine of constitutional doubt, which counsels us to interpret statutes, if possible, in such fashion as to avoid grave constitutional questions. See *United States ex rel. Attorney General v. Delaware & Hudson Co.*, 213 U. S. 366, 408 (1909); *Edward J. DeBartolo Corp. v. Florida Gulf Coast Building & Constr. Trades Council*, 485 U. S. 568, 575 (1988). As I proceed to discuss, it is my view that the Court’s entertainment of the present suit violates Article III. Even if one disagrees with that judgment, however, it is clear from *Richardson* that the question is a close one, so that the statute ought not be interpreted to present it.

II

In *Richardson*, we dismissed for lack of standing a suit whose “aggrievement” was precisely the “aggrievement” respondents assert here: the Government’s unlawful refusal to place information within the public domain. The only difference, in fact, is that the aggrievement there was more direct, since the Government already had the information within its possession, whereas here respondents seek enforcement action that will bring information within the Government’s possession and *then* require the information to be made public. The plaintiff in *Richardson* challenged the Government’s failure to disclose the expenditures of the Central Intelligence Agency (CIA), in alleged violation of the constitutional requirement, Art. I, § 9, cl. 7, that “a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.” We held that such a claim was a nonjusticiable “generalized grievance” because “the impact on [plaintiff] is plainly undif-